

STATE OF NEW YORK

1923--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 14, 2025

Introduced by M. of A. ROSENTHAL, GLICK, GONZALEZ-ROJAS, BORES, HEVESI, SIMON, SIMONE, COLTON -- read once and referred to the Committee on Economic Development -- recommitted to the Committee on Economic Development in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to the trade of farmed fur products

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The general business law is amended by adding a new section 399-bbbb to read as follows:

§ 399-bbbb. Trade in farmed fur products prohibited. 1. The legislature finds and declares that eliminating the sale of farmed fur products in the state of New York will decrease demand for cruel products, reduce public health risks, promote community awareness of animal welfare, foster a more humane environment, and enhance the reputation of the state.

2. For purposes of this section:

(a) "Fur" means any animal skin or part thereof with hair, fleece, or fur fibers attached thereto, either in its raw or processed state.

(b) "Fur product" means any article of clothing or covering for any part of the body, or any fashion accessory, including but not limited to handbags, shoes, slippers, hats, earmuffs, scarves, shawls, gloves, jewelry, keychains, toys or trinkets, and home accessories and decor, that is made in whole or part of fur. "Fur product" does not include any of the following:

(i) An animal skin or part thereof that is to be converted into leather, or which in processing will have the hair, fleece, or fur fiber completely removed;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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(ii) Animal hair, fleece, or fur fibers that are not attached to skin;
or

(iii) Fur, wool, or other fibers sourced exclusively from any member of the family Bovidae, Camelidae, Equidae, Suidae, or Cervidae.

(c) "Fur farm" means any operation, including the land, buildings, support facilities, and any other location or equipment, in which animals - including but not limited to mink, fox, and raccoon dog - are owned, controlled, raised, bred, propagated, or kept for the value of their fur.

(d) "Person" means any individual, firm, partnership, joint venture, association, limited liability company, corporation, estate, trust, receiver, or syndicate.

(e) "Ultimate consumer" means an individual who buys a fur product for their own use, or for the use of another, but not for resale or trade.

(f) "Used fur product" means a fur product that has been worn or used by an ultimate consumer.

3. Notwithstanding any other provision of law, rule, or regulation to the contrary, beginning twenty-four months after this section takes effect, it shall be unlawful for any person to sell, offer for sale, display for sale, trade, or otherwise distribute for monetary or nonmonetary consideration, a fur product in the state of New York if any of the fur contained in the fur product was sourced from an animal that was raised, maintained, kept, or housed for all or part of its life on a fur farm. For purposes of this section, the sale of a fur product shall be deemed to occur in New York if:

(a) The buyer takes physical possession of the fur product in New York; or

(b) The seller is located in New York.

4. This section does not apply to the sale, offer for sale, display for sale, trade, or distribution of:

(a) A used fur product;

(b) Fishing lures and fur pieces or parts intended to make fishing lures;

(c) A fur product required for use in the practice of a religion;

(d) A fur product used for traditional tribal, cultural, or spiritual purposes by a member of a federally recognized or state recognized Native American tribe; or

(e) A fur product where the activity is expressly authorized by federal law.

5. (a) The attorney general shall enforce this section. The attorney general may also seek injunctive relief to prevent further violations of this section.

(b) Within six months after this section takes effect, the attorney general shall promulgate rules and regulations for the implementation and enforcement of this section.

(c) Notwithstanding any other provision of law, there is a rebuttable presumption that a fur product contains fur that was sourced from an animal raised, maintained, kept, or housed for all or part of its life on a fur farm.

(d) Every seller of fur products shall maintain proper records showing proof that each fur product sold, offered for sale, traded, or otherwise distributed is exempt from the prohibitions of this section, and shall preserve such records for a minimum of three years.

(e) A person who violates this section shall be liable for a civil penalty of up to one thousand dollars per violation. Each fur product

1 that does not comply with the provisions of this section shall consti-
2 tute a separate violation.

3 § 2. Severability clause. If any clause, sentence, paragraph, subdivi-
4 sion, section or part of this act shall be adjudged by any court of
5 competent jurisdiction to be invalid, such judgment shall not affect,
6 impair, or invalidate the remainder thereof, but shall be confined in
7 its operation to the clause, sentence, paragraph, subdivision, section
8 or part thereof directly involved in the controversy in which such judg-
9 ment shall have been rendered. It is hereby declared to be the intent of
10 the legislature that this act would have been enacted even if such
11 invalid provisions had not been included herein.

12 § 3. This act shall take effect one year after it shall have become a
13 law.